



Crimes Amendment (Enforcement of Fines) Act 1998

Act No. 49 of 1998 as amended

This compilation was prepared on 4 April 2006

[This Act was amended by Act No. 9 of 2006]

Amendment from Act No. 9 of 2006

[Schedule 2 (item 14) amended item 3 of Schedule 1

Schedule 2 (item 14) commenced immediately after 29 June 1998]

Prepared by the Office of Legislative Drafting and Publishing,
Attorney-General's Department, Canberra

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An Act to amend the *Crimes Act 1914*, and for related purposes

[Assented to 29 June 1998]

The Parliament of Australia enacts:

1 Short title

This Act may be cited as the *Crimes Amendment (Enforcement of Fines) Act 1998*.

2 Commencement

This Act commences on the day on which it receives the Royal Assent.

3 Schedule(s)

Each Act that is specified in a Schedule to this Act is amended or repealed as set out in the applicable items in the Schedule concerned, and any other item in a Schedule to this Act has effect according to its terms.

Schedule 1—Amendment of the Crimes Act 1914

1 Subsection 3B(1)

Repeal the subsection, substitute:

- (1) The Governor-General may make arrangements with the Governor of a State, the Government of the Australian Capital Territory, the Administrator of the Northern Territory or the Administrator of Norfolk Island for:
- (a) officers of the State or Territory to exercise powers and perform functions; and
 - (b) facilities and procedures of the State or Territory to be made available;
- in relation to the carrying out or enforcement under this Act of orders made under this Act or another Act.

2 Transitional provision

An arrangement made under subsection 3B(1) of the *Crimes Act 1914* before the commencement of this Act continues in force after that commencement as if the arrangement had been made under subsection 3B(1) of that Act as in force immediately after that commencement.

3 Subsection 3B(2)

Omit “sections, 15A and”, substitute “section”.

4 Subsection 3B(3)

Insert:

order includes a sentence.

5 Subsection 15A(1)

Repeal the subsection, substitute:

- (1) A law of a State or Territory relating to the enforcement or recovery of a fine imposed on an offender applies to a person convicted in the State or Territory of an offence against a law of the Commonwealth. The law applies:

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- (a) so far as it is not inconsistent with a law of the Commonwealth; and
 - (b) with the modifications made by or under this section.
- (1AA) If a law of a State or Territory requires or permits a person or authority other than a court to take action to impose a penalty described in subsection (1AB) for failure to pay a fine, the law applies under subsection (1) as if the law did not require or permit the person or authority to take the action but instead:
- (a) allowed any person to apply to a magistrate of the State or Territory sitting as a court for an order imposing the penalty; and
 - (b) allowed the magistrate to make the order; and
 - (c) provided for the order to have the same effect that the taking of the action by the person or authority has under the law without the modifications made by or under this subsection; and
 - (d) were subject to any prescribed modifications consequential on the other modifications described in this subsection, or facilitating the operation of the law with those modifications.
- (1AB) Subsection (1AA) applies in relation to any of the following penalties:
- (a) garnishment of a debt, wage or salary;
 - (b) a charge or caveat on property;
 - (c) seizure of property;
 - (d) forfeiture of property;
 - (e) community service by a person who failed to pay a fine;
 - (f) detention or imprisonment of a person who failed to pay a fine;
 - (g) a penalty that is similar to a penalty described in paragraph (a), (b), (c), (d), (e) or (f);
 - (h) a penalty prescribed by the regulations.
- (1AC) Jurisdiction is conferred on a magistrate of a State or Territory to make orders described in subsection (1AA).
- (1AD) If a law of a State or Territory requires or permits a court or a court officer to:
- (a) refer a matter to a person or organisation; or
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- (b) notify a person or organisation; or
 - (c) provide information to a person or organisation;
- in relation to the enforcement or recovery of a fine imposed by the court, the law applies under subsection (1) in relation to the Federal Court of Australia and the Family Court of Australia in the same way as it applies to a court of the State or Territory.

6 Subsection 15A(1A)

Omit “making provision for or in relation to a matter mentioned in paragraph (1)(a), (b), (c) or (d)”, substitute “described in subsection (1AA)”.

7 At the end of section 15A

Add:

- (5) In this section:

modifications includes additions, omissions and substitutions.

8 Application

The amendments of section 15A of the *Crimes Act 1914* made by this Act apply in relation to a fine regardless of whether it was imposed before, on or after the commencement of this Act.